

Equivalent Citations

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Laxmidevamma And Others v. Ranganath And Others

Supreme Court Of India (Jan 20, 2015)

CASE NO.

Civil Appeal No. 176 Of 2015

JUDGES

- V. Gopala Gowda
- R. Banumathi, JJ.

ATTORNEY

- G.V Chandrashekar and Ms Anjana Chandrashekar, Advocates, for the Appellants;
- S.N Bhat, Advocate, for the Respondents.

SUMMARY**Factual and Procedural Background**

The appellants-plaintiffs owned one acre of land in Survey No. 1/1, Chikmagalur village, Karnataka, which they converted to non-agricultural use in 1987 and subdivided into fourteen sites. While selling Site Nos. 12 and 13 and parts of Site Nos. 11 and 14 to the first respondent-defendant through two sale deeds (11 July 1988 and 3 January 1992), the appellants marked an adjoining strip on the southern side as “A-schedule *property*” for a proposed road. The City Development Authority never approved or formed the road, and the land remained recorded in the appellants’ names.

In 1992 the first respondent sold his plots to the second and third respondents, who built a house and compound wall, allegedly encroaching 2½ feet × 80 feet (“B-schedule *property*”) of the appellants’ land. The appellants filed a suit before the Additional Civil Judge (Junior Division), Chikmagalur, seeking (i) declaration of absolute title over A-schedule *property* and (ii) possession of the encroached B-schedule *property* .

The trial court decreed the suit, and the Fast Track Court (first appellate court) affirmed the decree on 13 October 2006. In second appeal, the High Court of Karnataka on 27 September 2012 modified the decree, denying declaration and possession but allowing the appellants only future compensation if the land were acquired for a road. The present civil appeal challenges that High Court judgment.

Legal Issues Presented

1. Whether, in a second appeal under Section 100 of the Code of Civil Procedure, the High Court was justified in re-appreciating evidence and overturning concurrent factual findings of the trial and first appellate courts.
2. Whether the appellants are entitled to a declaration of absolute ownership over A-schedule *property* despite its earlier earmarking as a proposed road.
3. Whether the respondents unlawfully encroached upon B-schedule *property* and, if so, whether the appellants are entitled to recovery of possession.

Arguments of the Parties

Appellants' Arguments

- Both lower courts concurrently found that no road was formed and that the appellants retained ownership of A-schedule *property* ; such findings cannot be disturbed in second appeal.
- The High Court exceeded its Section 100 C.P.C. jurisdiction by re-evaluating evidence and ignoring the limitation findings that the suit was timely filed.
- The respondents' encroachment on B-schedule *property* was established through documentary and commission evidence.

Respondents' Arguments

- The appellants produced no title documents expressly conveying ownership over A-schedule *property* because it had been set aside for a public road, indicating they lacked full proprietary rights.
- Any encroachment occurred only on the northern side of the existing road and did not affect A-schedule *property* .
- The High Court rightly concluded that, having earmarked the land for public use, the appellants could only claim compensation upon acquisition, not a declaration of title.

Table of Precedents Cited

No precedents were cited in the provided opinion.

Court's Reasoning and Analysis

The Supreme Court observed that the trial court and first appellate court had evaluated extensive oral and documentary evidence—sale deeds, tax records (Exs. P2 & P6), khata endorsements (Ex. P4) and a revision order (Ex. P8)—all showing that A-schedule *property* remained in the appellants' name and had never been acquired or a road formed. Commission evidence (Ex. P5 and the Commissioner's report) confirmed the respondents'

Under Section 100 C.P.C., interference with concurrent factual findings is permissible only if those findings are perverse or unsupported by evidence. The Court found the High Court ignored material exhibits and witness testimonies, substituting its own view of the facts without demonstrating perversity. Because the High Court's intervention stemmed from an erroneous belief that earmarking land for a future road extinguished ownership—contrary to the documentary record—the Supreme Court held that no substantial question of law arose, and the High Court had acted beyond its jurisdiction.

The Court further noted that the respondents' defence of having encroached only on the northern side was rejected by both lower courts, and the High Court provided no valid reason to disturb that conclusion.

Holding and Implications

The appeal is allowed; the High Court's judgment dated 27 September 2012 is set aside, and the trial court's decree as affirmed by the first appellate court is restored.

Consequently, the appellants regain a declaration of absolute ownership over A-schedule *property* and are entitled to vacant possession of B-schedule *property* from the respondents. Each party will bear its own costs. The decision reinforces the limited scope of High Court interference under Section 100 C.P.C. but does not establish a new substantive legal precedent beyond that procedural principle.

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REPORTABLE

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

CIVIL APPEAL NO. 176 OF 2015

LAXMIDEVAMMA & ORS. .. Appellants Versus

RANGANATH & ORS. .. Respondents

J U D G M E N T

R. BANUMATHI, J.

This appeal arises out of the judgment dated 27.9.2012 passed by the High Court of Karnataka in R.S.A. No.297/2007, wherein the High Court allowed the appeal in part, modifying the concurrent judgment and decree passed by the courts below and holding that the appellants-plaintiffs are entitled to compensation for the space earmarked for road as and when the competent authority acquires the same.

2. Appellants-plaintiffs are the owners of the revenue land bearing Survey No.1/1 of Chikmagalur village which was converted for non-agricultural purpose under the order dated 2.4.1987 of the

Deputy Commissioner, Chikmagalur. Layout was formed from the above said land and the site Nos.12 and 13 and portions of site Nos.11 and 14 were sold to the first defendant by the appellants- plaintiffs by executing two sale deeds dated 11.7.1988 and 3.1.1992. To the south of the *property* sold to the respondents- defendants, 'A' schedule *property* as shown in the suit was earmarked for the purpose of road. However, the City Development Authority did not approve the same and hence no road was formed. Case of the appellants-plaintiffs is that since no road was formed, they continued to be the owners of the 'A' schedule *property* and they are the absolute owners of the same.

3. In the year 1992, first respondent-defendant sold the *property* purchased from the appellants-plaintiffs to second and third defendants who constructed a house on the same alongwith a compound wall. Grievance of the appellants- plaintiffs is that towards the northern side of 'A' schedule *property* , the respondents encroached upon 80' x 2^{1/2} which is described as 'B' schedule *property* in the suit, despite protest from the appellants-plaintiffs. In spite of repeated demands, the respondents have not handed over vacant possession of the encroached *property* . Therefore, appellants-plaintiffs filed a suit for declaration that they are the absolute owners of 'A' schedule *property* and for possession of the

'B' schedule *property* in the court of Addl. Civil Judge (Jr. Divn.), Chikmagalur.

4. Respondents-defendants filed written statement admitting that layout was formed out of the above Survey No. 1/1 of Chikmagalur village and that first appellant has sold site Nos. 12 and 13 and portions of site Nos.14 and 11 by two sale deeds dated 11.7.1988 and 3.1.1992 (Ex. D 16 Ex. D17). While selling the above sites, the first plaintiff has reserved 'A' schedule *property* for the purpose of road on the southern side of respondents' *property* . Pursuant to the request of the municipality, the adjacent *property* of 'A' schedule *property* was acquired by the authorities for the purpose of road. The defendant No.1 has constructed houses facing towards southern side of the road and the municipality has constructed a footover bridge in between the channel and 'A' schedule *property* . According to the respondents-defendants, 'A' schedule *property* is very much necessary for the purpose of road. The respondents contend that having sold the sites to the general public and also to the defendants earmarking the space as road, the plaintiffs are not justified in seeking a declaration of their title over 'A' schedule *property* . According to the respondents-defendants they have encroached 2^{1/2} measuring in width on the northern side of his house *property* and not on the southern side, and the

appellants have filed a suit with intention to shift the encroached area towards south. According to the respondents- defendants if the plaintiffs' title over 'A' schedule *property* is declared, the defendants and the general public who have purchased the house/sites from the plaintiffs will be put to inconvenience and hence they prayed for dismissal of the suit.

5. Upon consideration of oral and documentary evidence, the trial court decreed the suit holding that the plaintiffs are the absolute owners of 'A' schedule *property* and entitled to possession of 'B' schedule *property* to an extent of 2' x 78^{1/4} i.e. 2 feet north- south 78^{1/4} feet east-west and defendants 2 and 3 were directed to deliver vacant possession of the said land to the plaintiffs. Being aggrieved, the defendants filed appeal before the first appellate court- Fast Track Court, Chikmagalur. The first appellate court confirmed the judgment and decree of the trial court and dismissed the appeal vide judgment dated 13.10.2006. The unsuccessful defendants preferred second appeal before the High Court, which by the impugned judgment dated 27.9.2012 allowed the second appeal in part and modified the judgment and decree passed by the courts below holding that the plaintiffs are entitled for compensation for the space which was earmarked for road if the same was acquired by the competent authority. High Court held that the plaintiffs are

not entitled for a declaration that they are the absolute owners of the suit 'A' schedule *property* and consequently their claim for injunction was also not granted.

6. Learned counsel for the appellants contended that the courts below have recorded concurrent findings that 'A' schedule *property* was earmarked for road and that no road was formed and the plaintiffs have proved their ownership to 'A' schedule *property* and that the defendants have failed to prove that it is a road having the nearest approach. It was submitted that when the courts below have recorded concurrent findings, in exercise of its jurisdiction under Section 100 C.P.C., the High Court erred in re-appreciating the evidence and in interfering with the findings. It was further contended that the High Court erred in holding that there is a delay in instituting the suit for relief for mandatory injunction as both the courts below have rightly held that the suit is within limitation and that the defendants have encroached upon the plaintiffs' *property* .

7. Per contra, learned counsel appearing for the respondents-defendants contended that the plaintiffs failed to produce any documents of title for declaration of their title over 'A' schedule *property* and that the defendants have encroached upon the 'B' schedule *property* . It was further contended that as the plaintiffs themselves have stated that the space was left for

proposed road which indicates that the plaintiffs did not have full fledged valid right over 'A' schedule *property* , the High Court rightly set aside the judgments of the courts below.

8. We have carefully considered the rival contentions and perused the judgments of the courts below as well as the High Court and the materials on record.

9. Facts are not in dispute. Plaintiffs owned 1.00 acre of land in Survey No.1/1 at Chikmagalur village which was converted for non-agricultural purpose and layout was formed with fourteen sites thereon. Ex P.7 is the copy of the order issued by the Deputy Commissioner granting permission to the plaintiff No.1 for converting the agricultural land into non- agricultural purpose. As per condition No.9 therein, except two guntas of land taken over by the municipal authorities for the purpose of road at the rate of two guntas per acre, permission was granted in respect of remaining 38 guntas. Plaintiffs sold site Nos. 12 and 13 and portions of site Nos. 11 and 14 to defendant no.1 under two sale deeds. In the first sale deed dated 11.7.1988 an extent of 80' x 50' was sold and in the second sale deed dated 3.1.1992, 22' x 76' was sold. Subsequently, first defendant sold the *property* purchased by him from the plaintiffs to the second and third defendants under Exs. D16 and D17 dated 11.7.1988 and 3.1.1992 respectively. In its

judgment in paragraphs 11 to 13, the first appellate court elaborately discussed the above sale deeds and pointed out discrepancies in the boundaries of the *property* between the earlier sale deeds and Ex. D16 sale deed in favour of defendant No. 2.

10. Plaintiffs have sought for declaration of 'A' schedule *property* earmarked for road. 'B' schedule *property* is the portion of 'A' schedule *property* measuring $2\frac{1}{2}$ x 80' which according to the plaintiffs was encroached by the defendants. Upon consideration of oral and documentary evidence, trial court as well as the first appellate court have recorded concurrent findings of fact to the effect that the plaintiffs have earmarked the land on the southern side intended for road and no road was formed and land of one Advocate V.B.K. Dias was acquired and road was formed therein. From the evidence of DW-1- President and Councilor of the Municipality and DW-4, Assistant Commissioner, courts below recorded findings that the 'A' schedule *property* is still in the name of the plaintiffs and that there was no acquisition and payment of compensation made to the first plaintiff in respect of the disputed *property* .

11. Ex. P4 - endorsement issued by the City Municipality to the plaintiff No.1, which clearly shows about the mutation of khata of the schedule 'A' *property* in favour of plaintiff No. 1. Ex. P2 and

Ex. P 6 are the tax assessment register extracts which amply prove that the 'A' schedule *property* stands in the name of plaintiffs and that they are the owners of the disputed *property* . As against the resolution passed by the city Municipality by cancelling the khata of schedule 'A' *property* in favour of the plaintiff No.1, he has preferred revision. In the revision petition filed by the plaintiff No.1 against the resolution passed by the City Municipality for cancelling the khata of schedule 'A' *property* , the said resolution was set aside and Ex. P8 is the said order. Based upon the above documentary evidence and other evidence, first appellate court has recorded concurrent findings that the plaintiffs are successful in showing that they are the owners of 'A' schedule *property* and that the same is coupled with oral evidence which substantiates the documentary evidence.

12. Based upon oral and documentary evidences, the courts below have recorded concurrent findings that the plaintiffs are the owners of 'A' schedule *property* . While so, the High Court ignoring the material evidence, erred in interfering with the concurrent findings of fact. While holding that 'A' schedule *property* has been left for the road and that plaintiffs cannot seek declaration of title, in our considered view, the High Court brushed aside the oral and documentary evidence based on which the courts below recorded

concurrent findings of fact that 'A' schedule *property* though earmarked for road, the same was not formed and that plaintiffs established their right in the 'A' schedule *property* .

13. Insofar as the encroachment of 'B' schedule *property* , the sketch prepared by the Assistant Director of Land Records (ADLR), was produced and the same was marked in the trial court as Ex. P5. In the first appellate court, the interlocutory application filed by the plaintiffs, one Sri Basavaraj, Assistant Engineer, Public Works Department was appointed as the Court Commissioner, who had inspected the spot and filed the report and also the sketch. Based on the report of the Court Commissioner and Ex. P5 and other evidence, the first appellate court has recorded the findings of fact that defendants have encroached upon suit 'A' schedule *property* and the same read as under:-

"...No doubt shall arise to hold that, it is proved that, defendant Nos. 2 and 3 have encroached upon $78\frac{1}{4}' \times 2'$ in schedule 'A' *property* , which is also corroborated by Ex-P5. It is also the first rough sketch submitted by the Court Commissioner. But though the extent of the encroachment area reported therein does not absolutely tally with the extent of 'B' schedule *property* , encroachment of $78\frac{1}{4}' \times 2'$ by defendant Nos. 2 and 3 out of it is proved...."

Based on the report of the Court Commissioner and Ex. P5 and on the above findings the first appellate court ordered delivery of possession of 'B' schedule *property* . In our view, the said findings of

fact do not suffer from any perversity and the same ought not to have been interfered by the High Court.

14. Before the courts below, defendants have taken a plea that they had encroached a width of 2^{1/2} feet in the road only on the northern side as a result of which width of road towards northern side is reduced from 30 feet to 27^{1/2} feet. Both the courts below negatived the said plea holding that there are no traces of encroachment of 80' x 3' by the defendants on the northern side.

15. Based on oral and documentary evidence, both the courts below have recorded concurrent findings of fact that plaintiffs have established their right in 'A' schedule *property*. In the light of concurrent findings of fact, no substantial questions of law arose in the High Court and there was no substantial ground for re- appreciation of evidence. While so, the High Court proceeded to observe that the first plaintiff has earmarked the 'A' schedule *property* for road and that she could not have full fledged right and on that premise proceeded to hold that declaration to plaintiffs' right cannot be granted. In exercise of jurisdiction under Section 100 C.P.C., concurrent findings of fact cannot be upset by the High Court unless the findings so recorded are shown to be perverse. In our considered view, the High Court did not keep in view that the concurrent findings recorded by the courts below, are based on oral

and documentary evidence and the judgment of the High Court cannot be sustained.

16. In the result, the appeal is allowed, impugned judgment in R.S.A. No. 297/2007 dated 27.9.2012 passed by the High Court of Karnataka is set aside and the judgment passed by the Addl. Civil Judge (Jr. Divn.), Chikmagalur as confirmed by the lower appellate court is restored. Parties are left to bear their own costs.

.....J.

(V. Gopala Gowda)

.....J.

(R. Banumathi)

New Delhi;

January 20, 2015

ITEM NO.1A-For Judgment COURT NO.12 SECTION IVA

S U P R E M E C O U R T O F I N D I A

RECORD OF PROCEEDINGS

Civil Appeal No(s). 176/2015 LAXMIDEVAMMA & ORS. Appellant(s)

VERSUS

RANGANATH & ORS. Respondent(s) Date : 20/01/2015 This appeal was called on for pronouncement of

JUDGMENT today. For Appellant(s) Ms. Anjana Chandrashekar,Adv. For Respondent(s)

Mr. S. N. Bhat,Adv.

Hon'ble Mrs. Justice R. Banumathi pronounced the judgment of the Bench comprising Hon'ble Mr. Justice V. Gopala Gowda and Hon'ble Mrs. Justice R. Banumathi. The appeal is allowed in terms of the Signed Reportable Judgment.

(VINOD KR. JHA) (MALA KUMARI SHARMA)

COURT MASTER COURT MASTER

(Signed Reportable judgment is placed on the file)